

OFFICE OF THE SECRETARY

P.O. Box 942883
Sacramento, CA 94283-0001



July 9, 2018

Honorable Darlene E. Schempp
Judge of the Superior Court
County of Los Angeles
6230 Sylmar Avenue
Van Nuys, CA 91401

Re: Navarro, Martin Isabel
CDC No.: G49528
Case No.: LA058292-01
Date of Sentence: January 21, 2009

Dear Honorable Darlene E. Schempp:

The purpose of this letter is to provide the court with authority to resentence Martin Isabel Navarro pursuant to Penal Code Section 1170, subdivision (d). This section provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation, the court may recall a previously ordered sentence and commitment, and resentence the defendant in the same manner as if he or she had not previously been sentenced, provided the new sentence is no greater than the initial sentence.

Inmate Navarro was sentenced in 2009, and was convicted of section 245, subdivision (a)(1), Assault With Deadly Weapon/Instr. The trial court sentenced inmate Navarro on January 21, 2009. At sentencing, the trial court imposed two sentence enhancements: 12022.7 and 186.22, subdivision (b)(1)(C). Both sentence enhancements were attached to Inmate Navarro's section 245 offense. (See attached abstract.)

In light of the above, please consider *People v. Gonzalez* ((2009) 178 Cal.App.4th 1325. In *People v. Gonzalez*, the appellate court held the trial court should not have imposed sentence enhancements under section 12022.7, subdivision (a) and section 186.22, subdivision (b)(1)(C) because both sentence enhancements were based on the great bodily injury the defendant caused while committing the underlying offense. (*Id.* at p. 1332.)

Based on the above facts and case law, it appears that inmate Navarro's sentence warrants the attention of the court. Pursuant to Section 1170, subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled and that he be resented in accordance with the cited authority.

Sincerely,



SCOTT KERNAN
Secretary

Enclosures:

Abstract of Judgment-Prison Commitment-Determinate
Minute Order
Felony Complaint

cc: Honorable Daniel J. Buckley, Los Angeles County Presiding Judge
Los Angeles District Attorney
Public Defender

POOR ORIGINAL

G49528
OK TO GO STWD NOTED

JAN 27 2009 mls

ABSTRACT OF JUDGMENT - PRISON COMMITMENT - DETERMINATE
SINGLE, CONCURRENT, OR FULL-TERM CONSECUTIVE COUNT FORM

(Not to be used for multiple count convictions or for 1/3 consecutive sentences)

CR-290.1

SUPERIOR COURT OF CALIFORNIA, COUNTY OF: LOS ANGELES - NORTHWEST DISTRICT		
PEOPLE OF THE STATE OF CALIFORNIA vs. DEFENDANT: NAVARRO, MARTIN ISABEL AKA: CII NO.: A27731062 BOOKING NO.: 001197700	DOB: 03-11-83 ☐ NOT PRESENT	CASE NUMBER LA058292-01
COMMITMENT TO STATE PRISON ABSTRACT OF JUDGMENT ☐ AMENDED ABSTRACT		
DATE OF HEARING 01-21-09	DEPT. NO. NWS	JUDGE DARLENE E. SCHEMPP
CLERK HEDY EVANGELISTA	REPORTER ROSE MACHADO	PROBATION NO. OR PROBATION OFFICER X-1999600 ☐ IMMEDIATE SENTENCING
COUNSEL FOR PEOPLE RICHARD QUINONES, DDA		COUNSEL FOR DEFENDANT DROR TOISTER, DPD ☒ APPTD.

1. Defendant was convicted of the commission of the following felony:

COUNT	CODE	SECTION NUMBER	CRIME	YEAR CRIME COMMITTED	DATE OF CONVICTION (MO./DATE/YEAR)	CONVICTED BY	TERM (L, M, U)	TIME IMPOSED
03	PC	245(a)(1)	ASSULT W DEADLY WEAPON/INSTR.	2008	01-21-09	X	U	4 0

2. ENHANCEMENTS charged and found to be true TIED TO SPECIFIC COUNTS (mainly in the PC 12022 series). List each count enhancement horizontally. Enter time imposed for each or "S" for stayed. DO NOT LIST ANY STRICKEN ENHANCEMENT(S).

COUNT	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	TOTAL
03	186.22(b)(1)(c)PC	10YRS	12022.7(a)PC	3YRS			13 0

3. ENHANCEMENTS charged and found to be true FOR PRIOR CONVICTIONS OR PRISON TERMS (mainly in the PC 667 series). List all enhancements horizontally. Enter time imposed for each or "S" for stayed. DO NOT LIST ANY STRICKEN ENHANCEMENT(S).

ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	TOTAL

4. ☐ Deft. sentenced per: ☐ PC 667(b)-(l) or PC 1170.12 (two strikes) ☐ PC 1170(a)(3). Pre-confinement credits equal or exceed time imposed. (Paper Commitment.) Deft. ordered to report to local Parole Office upon release.5. FINANCIAL OBLIGATIONS (plus any applicable penalty assessments): ☒ Court Security Fee of \$ 20.00 per PC 1465.8.Restitution Fine(s): \$ 200.00 per PC 1202.4(b) forthwith per PC 2085.5; \$200.00 per PC 1202.45 suspended unless parole is revoked.
\$ _____ per PC 1202.44 is now due, probation having been revoked.Restitution per PC 1202.4(f): ☐ \$ _____ / ☐ Amount to be determined to ☐ victim(s)* ☐ Restitution Fund
☐ *Victim name(s), if known, and amount breakdown in item 8 below. ☐ *Victim name(s) in probation officer's report.Fine(s): \$ _____ per PC 1202.5. \$ _____ per VC 23550 or _____ days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ Includes: ☐ \$50 Lab Fee per HS 11372.5(a) ☐ \$ _____ Drug Program Fee per HS 11372.7(a) for each qualifying offense.6. TESTING: a. ☐ Compliance with PC 296 verified b. ☒ DNA per PC 296 c. ☐ AIDS per PC 1202.1 d. ☐ other (specify): _____7. IMMEDIATE SENTENCE: ☐ Probation to prepare and submit a post-sentence report to CDCR per PC 1203c. Deft's Race/Nat'l Origin HIS

8. Other orders (specify): THE COURT IMPOSES A \$20.00 DNA FEE FOR COLLECTION OF DNA SAMPLES. PURSUANT TO PENAL CODE SECTION 186.30, THE DEFENDANT IS ORDERED TO REGISTER AS A STREET GANG PARTICIPANT WITH THE LOCAL LAW ENFORCEMENT AGENCY WITHIN 10 DAYS OF RELEASE FROM CUSTODY.

9. TOTAL TIME IMPOSED EXCLUDING COUNTY JAIL TERM: **17** **0**10. ☐ This sentence is to run concurrent with (specify):11. Execution of sentence imposed: a. ☒ at initial sentencing hearing. b. ☐ at resentencing per decision on appeal. c. ☐ after revocation of probation.
d. ☐ at resentencing per recall of commitment. (PC 1170(d).) e. ☐ other (specify):

DATE SENTENCE PRONOUNCED	CREDIT FOR TIME SPENT IN CUSTODY	TOTAL DAYS INCLUDING:	ACTUAL LOCAL TIME	LOCAL CONDUCT CREDITS	TIME SERVED IN STATE INSTITUTION:
01-21-09		374	326	48	DMH CDCR CRC

13. The defendant is remanded to the custody of the sheriff ☒ forthwith ☐ after 48 hours excluding Saturdays, Sundays, and holidays.
To be delivered to ☒ the reception center designated by the director of the California Department of Corrections and Rehabilitation.
☐ Other (specify):

CLERK OF THE COURT: I hereby certify the foregoing to be a correct abstract of the judgment made in this action.

DEPUTY'S SIGNATURE
B J MCFARLAND, CS III
DATE
01-23-09

This form is prescribed under PC 1213.5 to satisfy the requirements of PC 1213 for determinate sentences. Attachments may be used but must be referred to in this document.